

|                                                                                                                                                                              |                           |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|
| PARTY WITHOUT ATTORNEY OR ATTORNEY<br>NAME:<br>FIRM NAME:<br>STREET ADDRESS:<br>CITY: STATE: ZIP CODE:<br>TELEPHONE NO.: FAX NO.:<br>E-MAIL ADDRESS:<br>ATTORNEY FOR (name): | <b>FOR COURT USE ONLY</b> |
| <b>SUPERIOR COURT OF CALIFORNIA, COUNTY OF</b><br>STREET ADDRESS:<br>MAILING ADDRESS:<br>CITY AND ZIP CODE:<br>BRANCH NAME:                                                  |                           |
| PETITIONER:<br>RESPONDENT:                                                                                                                                                   |                           |
| <b>PETITION TO DETERMINE PARENTAL RELATIONSHIP</b>                                                                                                                           | CASE NUMBER:              |

1. The petitioner
  - a. ☐ gave birth to the children listed in item 2.
  - b. ☐ wants to be determined as a parent of the children in item 2 because *(specify)*:
  - c. ☐ wants to be determined as not a parent of the children listed in item 2 because *(specify)*:
  - d. ☐ is the child or the child's personal representative *(specify court and date of appointment)*:
  - e. ☐ Other *(specify)*:
2. The children are
  - a. Child's name Birthdate Age
  - b. ☐ a child who is not yet born.
3. The court has jurisdiction over the respondent because the respondent:
  - a. ☐ lives in this state.
  - b. ☐ had sexual intercourse in this state, which resulted in conception of the children listed in item 2.
  - c. ☐ Other *(specify)*:
4. The action is brought in this county because *(you must check one or more to file in this county)*:
  - a. ☐ the children live or are found in this county.
  - b. ☐ a parent is deceased and proceedings for administration of the estate have been or could be started in this county.
5. Petitioner claims *(check all that apply)*:
  - a. ☐ respondent is the parent of the children listed in item 2 above.
  - b. ☐ parentage has been determined by a voluntary declaration of parentage or paternity. *(Attach a copy if available.)*
  - c. ☐ respondent is the children's parent and has failed to support the children.
  - d. ☐ *(name):* \_\_\_\_\_ has furnished or is furnishing the following reasonable expenses of pregnancy and birth for which the respondent as parent of the children should pay:  
       Amount                      Payable to                      For *(specify)*:
  - e. ☐ public assistance is being provided to the children.
  - f. ☐ Other *(specify)*:
6. A completed *Declaration Under Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA)* (form [FL-105](#)) is attached.

|                            |              |
|----------------------------|--------------|
| PETITIONER:<br>RESPONDENT: | CASE NUMBER: |
|----------------------------|--------------|

Petitioner asks the court to make the determinations indicated below.

7. PARENT-CHILD RELATIONSHIP (*check all that apply*):

- a. ☐ Petitioner ☐ Respondent is the parent of the children listed in item 2.
- b. ☐ Petitioner ☐ Respondent is not the parent of the children listed in item 2.
- c. ☐ Petitioner requests genetic testing to determine whether the ☐ Petitioner ☐ Respondent is the parent of the children listed in item 2.

8. CHILD CUSTODY AND VISITATION (PARENTING TIME)

- a. If ☐ Petitioner ☐ Respondent is found to be the parent of the children listed in item 2.

- |                                                          | Petitioner               | Respondent               | Joint                    | Other                    |
|----------------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| b. Legal custody of children to .....                    | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| c. Physical custody of children to .....                 | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| d. Child visitation (parenting time) be granted to ..... | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |

As requested in ☐ form [FL-311](#) ☐ form [FL-312](#) ☐ form [FL-341\(C\)](#)  
☐ form [FL-341\(D\)](#) ☐ form [FL-341\(E\)](#) ☐ Attachment 8d

- e. The facts in support of the requested custody and visitation (parenting time) orders are (*specify*):  
☐ Contained in the attached declaration.

9. REASONABLE EXPENSES OF PREGNANCY AND BIRTH

|                                                                      |                                        |                                        |                                   |
|----------------------------------------------------------------------|----------------------------------------|----------------------------------------|-----------------------------------|
| Reasonable expenses of pregnancy and birth to be paid by as follows: | Petitioner<br><input type="checkbox"/> | Respondent<br><input type="checkbox"/> | Joint<br><input type="checkbox"/> |
|----------------------------------------------------------------------|----------------------------------------|----------------------------------------|-----------------------------------|

10. FEES AND COSTS OF LITIGATION

|                                                                                                             |                          |                          |                          |
|-------------------------------------------------------------------------------------------------------------|--------------------------|--------------------------|--------------------------|
|                                                                                                             | Petitioner               | Respondent               | Joint                    |
| a. Attorney fees to be paid by                                                                              | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |
| b. Expert fees, guardian ad litem fees, and other costs of the action or pretrial proceedings to be paid by | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> |

11. NAME CHANGE

☐ Children's names be changed, according to Family Code section 7638, as follows (*specify old and new names*):

12. CHILD SUPPORT

The court may make orders for support of the children and issue an earnings assignment without further notice to either party.

13. ☐ OTHER ORDERS REQUESTED (*specify*):

14. I have read the restraining order on the back of the *Summons* (form [FL-210](#)) and I understand it applies to me when this *Petition* is filed.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:



(TYPE OR PRINT NAME)

(SIGNATURE OF PETITIONER)

A blank *Response to Petition to Determine Parental Relationship* (form [FL-220](#)) must be served on the respondent with this petition.

**NOTICE:** If you have a child from this relationship, the court is required to order child support based upon the income of both parents. Support normally continues until the child is 18. You should supply the court with information about your finances. Otherwise, the child support order will be based upon information supplied by the other parent. Any party required to pay child support must pay interest on overdue amounts at the "legal" rate, which is currently 10 percent.